



**Thruway
Authority**

KATHY HOCHUL
Governor

JOANNE M. MAHONEY
Chair

FRANK G. HOARE, ESQ.
Executive Director

May 20, 2025

CERTIFIED MAIL

Nicholas Paro, Town Supervisor
Town of Salina
201 School Road
Liverpool, NY 13088

RE: State Environmental Quality Review Act - Determination of Non-Significance for Communications Monopole and Equipment Compound near I-90, Exit 37, Town of Salina, Onondaga County

Dear Supervisor Paro:

Phoenix Tower International has proposed the construction of a wireless telecommunications facility within a proposed 50' x 50' fenced compound adjacent to Exit 37 of I-90 Eastbound, located in the Town of Salina. Proposed improvements include the installation of one 180-foot-tall monopole (plus a 4-foot lightning rod), a 12-foot-wide temporary driveway, a 12-foot-wide permanent driveway, and all associated equipment. The project area will be directly accessed from the I-90 on/off ramp.

The New York State Thruway Authority (Authority), acting as Lead Agency in accordance with the State Environmental Quality Review Act ("SEQRA"), (New York Environmental Conservation Law ["ECL"] Article 8 and implementing regulations, 6 New York Codes, Rules and Regulations ["NYCRR"] Part 617 et seq.), has classified the action as a Type I Action.

As Lead Agency, the Authority has evaluated all aspects of the project to identify the potential environmental impacts. In accordance with SEQRA, the Authority is notifying you that it has determined the project will not have a potentially significant adverse environmental impact and has made a Negative Declaration for the project. Enclosed, please find the Full Environmental Assessment Form Part 3, "Evaluation of the Magnitude and Importance of Project Impacts and Determination of Non-Significance."

The Authority will file and distribute the Negative Declaration in accordance with the SEQRA regulations. Questions or suggestions may be sent to: public.info@thruway.ny.gov.

Sincerely,

A handwritten signature in black ink, appearing to read "Kevin Wisely".

Kevin Wisely
Chief Maintenance and Operations Officer

Enclosures

Project :

Date :

Full Environmental Assessment Form
Part 3 - Evaluation of the Magnitude and Importance of Project Impacts
and
Determination of Significance

Part 3 provides the reasons in support of the determination of significance. The lead agency must complete Part 3 for every question in Part 2 where the impact has been identified as potentially moderate to large or where there is a need to explain why a particular element of the proposed action will not, or may, result in a significant adverse environmental impact.

Based on the analysis in Part 3, the lead agency must decide whether to require an environmental impact statement to further assess the proposed action or whether available information is sufficient for the lead agency to conclude that the proposed action will not have a significant adverse environmental impact. By completing the certification on the next page, the lead agency can complete its determination of significance.

Reasons Supporting This Determination:

To complete this section:

- Identify the impact based on the Part 2 responses and describe its magnitude. Magnitude considers factors such as severity, size or extent of an impact.
- Assess the importance of the impact. Importance relates to the geographic scope, duration, probability of the impact occurring, number of people affected by the impact and any additional environmental consequences if the impact were to occur.
- The assessment should take into consideration any design element or project changes.
- Repeat this process for each Part 2 question where the impact has been identified as potentially moderate to large or where there is a need to explain why a particular element of the proposed action will not, or may, result in a significant adverse environmental impact.
- Provide the reason(s) why the impact may, or will not, result in a significant adverse environmental impact
- For Conditional Negative Declarations identify the specific condition(s) imposed that will modify the proposed action so that no significant adverse environmental impacts will result.
- Attach additional sheets, as needed.

Refer to the attached "Evaluation of the Magnitude and Importance of Project Impacts and Determination of Non-Significance"

Determination of Significance - Type 1 and Unlisted Actions

SEQR Status: ☒ Type 1 ☐ Unlisted

Identify portions of EAF completed for this Project: ☒ Part 1 ☒ Part 2 ☒ Part 3

Upon review of the information recorded on this EAF, as noted, plus this additional support information

and considering both the magnitude and importance of each identified potential impact, it is the conclusion of the
New York State Thruway Authority _____ as lead agency that:

☒ A. This project will result in no significant adverse impacts on the environment, and, therefore, an environmental impact statement need not be prepared. Accordingly, this negative declaration is issued.

☐ B. Although this project could have a significant adverse impact on the environment, that impact will be avoided or substantially mitigated because of the following conditions which will be required by the lead agency:

There will, therefore, be no significant adverse impacts from the project as conditioned, and, therefore, this conditioned negative declaration is issued. A conditioned negative declaration may be used only for UNLISTED actions (see 6 NYCRR 617.7(d)).

☐ C. This Project may result in one or more significant adverse impacts on the environment, and an environmental impact statement must be prepared to further assess the impact(s) and possible mitigation and to explore alternatives to avoid or reduce those impacts. Accordingly, this positive declaration is issued.

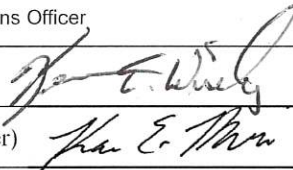
Name of Action: US-NY-2029 Exit 37

Name of Lead Agency: New York State Thruway Authority

Name of Responsible Officer in Lead Agency: Kevin Wisely

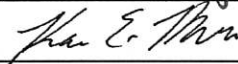
Title of Responsible Officer: Chief Maintenance and Operations Officer

Signature of Responsible Officer in Lead Agency:



Date: 5/20/2025

Signature of Preparer (if different from Responsible Officer)



Date: 05/19/25

For Further Information:

Contact Person: Kara Phillips

Address: 200 Southern Boulevard, Albany, NY 12209

Telephone Number: (518) 471-5984

E-mail: kara.phillips@thruway.ny.gov

For Type 1 Actions and Conditioned Negative Declarations, a copy of this Notice is sent to:

Chief Executive Officer of the political subdivision in which the action will be principally located (e.g., Town / City / Village of)

Other involved agencies (if any)

Applicant (if any)

Environmental Notice Bulletin: <http://www.dec.ny.gov/enb/enb.html>

PRINT FULL FORM

FULL ENVIRONMENTAL ASSESSMENT FORM PART 3

Evaluation of the Magnitude and Importance of Project Impacts and Determination of Non-Significance

New York State Thruway Authority

US-NY-Exit 37 Salina

Introduction

Phoenix Tower International (PTI) is proposing the construction of a wireless telecommunications facility within a proposed 50' x 50' fenced compound adjacent to Exit 37 of I-90 Eastbound, located in the Liverpool community within the Town of Salina, NY. Proposed improvements include the installation of one 180-foot-tall monopole (plus a 4-foot lightning rod) monopole, a 12-foot-wide temporary driveway, a 12-foot-wide permanent driveway, and all associated equipment (Project). As Lead Agency, in accordance with the State Environmental Quality Review Act (SEQRA), 6 NYCRR Part 617, the Authority has classified the action as a Type I Action. The Authority has also determined the proposed Project will not have a potentially significant adverse environmental impact. Therefore, the Authority has made a Negative Declaration for the Project in accordance with Article 8 of the New York State Environmental Conservation Law (ECL).

Project Description

PTI is proposing the construction of a wireless telecommunications facility within a proposed 50' x 50' fenced compound adjacent to Exit 37 of I-90 Eastbound, located in the Liverpool community within the Town of Salina, NY. Proposed improvements include the installation of one 180-foot-tall monopole (plus a 4-foot lightning rod) monopole, a 12-foot-wide temporary driveway, a 12-foot-wide permanent driveway, and all associated equipment (Project). The project area will be directly accessible from a proposed access road extending north from I-90 on/off ramp. PTI is proposing to use the existing utilities on the Site. Any grass areas disturbed during construction, outside the Project area shall be reseeded after construction.

Evaluation of Project Impacts

No significant environmental impact is anticipated due to the absence of identified resources within the physical work areas of the Project area which would have an effect on the following environmental subjects: geological features, air, plants and animals, agricultural resources, open space and recreation, critical environmental areas, transportation, energy, noise, lighting, human health, consistency with community plans and zoning, and consistency with community character. Any changes to Project conditions or scope of work will be evaluated for potential impacts and consistency with the SEQRA determination. Any permits and/or approvals will be obtained, as necessary, from the appropriate regulatory agency to ensure no significant adverse environmental impacts occur.

Although the Authority has determined that none of the potential Project impacts identified in the FEAF Part 2 are "Moderate to Large," which require further explanation of the Project's impacts on the environment, this Determination of Significance nonetheless identifies and evaluates relevant potential environmental impacts from this Project.

Potential Environmental Impacts

The Authority has carefully considered all potential environmental impacts associated with the proposed Project and reviewed the criteria for determining significance pursuant to 6 NYCRR Part 617.7 (c)(1). Based on that criteria, as follows, the Authority has determined the action is a Type I Action and will issue a Negative Declaration for the Project.

6 NYCRR 617.7 (c) (1) (i)

The proposed Project is not likely to cause substantial adverse changes to existing air quality, ground or surface water quality or quantity, traffic or noise levels, level of solid waste production, potential for erosion, flooding, leaching or drainage problems.

6 NYCRR 617.7 (c) (1) (ii)

The proposed Project is anticipated to involve minimal tree removal. The proposed tree-cutting will be conducted during the period between November 1 and March 31. The USFWS Northeast Determination Key and Northern Long-eared Bat and Tricolored Bat DKeys were consulted, and it was determined that the project is “Not Likely to Adversely Affect” the Indiana bat, Northern long-eared bat, tricolored bat and monarch butterfly. The project area does not provide suitable habitat for the Bald Eagle; therefore, the project “No Effect” on the Bald Eagle. No milkweed plants or otherwise suitable summer breeding and migratory habitat for the Monarch Butterfly was observed in the Survey Area; therefore, the project is anticipated to have “No Effect” on the Monarch Butterfly.

6 NYCRR 617.7 (c) (1) (iii)

The proposed Project will not cause impairments to the characteristics of a Critical Environmental Area (“CEA”) as designated under 6 NYCRR Part 617, et seq.

6 NYCRR 617.7 (c) (1) (iv)

The proposed Project does not present any conflict with a community’s current plans or goals, official adopted or approved. The Project does not pose any conflict with existing zoning laws.

6 NYCRR 617.7 (c) (1) (v)

The proposed Project will not impair the character or quality of historic, archaeological, architectural, or aesthetic resources, or aesthetic resources or of existing community or neighborhood character.

6 NYCRR 617.7 (c) (1) (vi)

The proposed Project will not result in a major change in the use of either the quantity or type of energy.

6 NYCRR 617.7 (c) (1) (vii)

The proposed Project is not anticipated to create a hazard to human health.

6 NYCRR 617.7 (c) (1) (viii)

The proposed Project is not anticipated to result in a significant change in the use, and/or intensity of use of land. There are no agricultural resources that would be affected by the Project, and the Project will have no effect on existing open space and recreational resources. There are no geologic features that would be affected by the Project.

6 NYCRR 617.7 (c) (1) (ix)

The proposed Project will not encourage or attract a large number of people to a place for more than a few days.

6 NYCRR 617.7 (c) (1) (x)

The proposed Project is not anticipated to create any significant increased demand for other actions as described by the above and further below. The Project is not generating additional traffic and will not require additional services or energy.

6 NYCRR 617.7 (c) (1) (xi)

The proposed Project does not create impacts to two or more elements of the environment that, collectively, would result in a substantial adverse environmental impact.

6 NYCRR 617.7 (c) (1) (xii)

The proposed Project has been reviewed with full consideration of potential cumulative effects. The proposed project consists of the installation of a wireless telecommunications facility within a proposed 50' x 50' fenced compound adjacent to Exit 37 of I-90 Eastbound, located in the Liverpool community within the Town of Salina, NY. Proposed improvements include the installation of one 180-foot-tall monopole (plus a 4-foot lightning rod) monopole, a 12-foot-wide temporary driveway, a 12-foot-wide permanent driveway, and all associated equipment (Project). The project area will be directly accessible from a proposed access road extending north from the I-90 on/off ramp. PTI is proposing to use the existing utilities on the Site. It will not have a combined effect on any resource. The Project will not generate new traffic or significantly change traffic patterns and any potential effects from construction will be minor and temporary in nature. The work occurring at each site, on its own merits, is minor and will result in minimal, to no impacts to environmental resources.

Discussion of Part 2 of Full EAF, "Impact Assessment"

The proposed Project is within an existing transportation corridor and will not result in any potentially significant adverse impacts.

The NYSDEC Environmental Mapper was consulted to determine if any resources would be within the physical work areas within the Project area and the anticipated magnitude of impacts was assessed.

Environmental Resources

PTI is proposing the construction of a wireless telecommunications facility within a proposed 50' x 50' fenced compound adjacent to Exit 37 of I-90 Eastbound, located in the Liverpool community within the Town of Salina, NY. Proposed improvements include the installation of one 180-foot-tall monopole (plus a 4-foot lightning rod) monopole, a 12-foot-wide temporary driveway, a 12-foot-wide permanent driveway and all associated equipment (Project). PTI is proposing to use the existing utilities on the Site.

The proposed Project is located within an area with a high volume of traffic, with minor ground disturbance and tree removal proposed. Any grass areas disturbed during construction outside the Project area shall be reseeded after construction. Additionally, the Project is not located within, or immediately adjacent to, federal or state wetlands. As such, this Project will have no potentially significant adverse impact on natural resources.

Impact on Land

The work areas are in maintained highway and roadway rights of way, which have been previously disturbed. Any potential effects from construction will be minor and temporary in nature; the work occurring at this site, on its own merits, is minor.

Surface Water

No regulated waterbodies are located within the physical work areas within the Project area. The Project activities are not expected to involve excavation in or the discharge of dredged or fill material into Waters of the United States (U.S.). The Project will result in no significant adverse environmental impacts on these resources.

No potentially significant adverse environmental impacts from the Project are expected for State or National Wild and Scenic Rivers.

Since the Project does not involve the construction or modification of any bridge, dam, dike, or causeway over any navigable water of the U.S., Section 9 of the Rivers and Harbors Act of 1899 and the General Bridge Act of 1946 are not applicable. Since the Project does not involve the creation of any obstruction to the navigable capacity of any of the waters of the U.S., or in any manner alter or modify the course, location, condition, or capacity of any navigable water of the U.S., Section 10 of the Rivers and Harbors Act of 1899 is not applicable. The Project will have no potentially significant adverse impacts to flooding.

Stormwater

The Project may disturb soils and has the potential to temporarily affect the quality and quantity of stormwater run-off that may discharge into subsurface or surface waters. Coverage under the New York State SPDES General Permit for Stormwater Discharges From Construction Activities (GP-0-25-001 or current version) (SPDES General Permit) is not required because the site's soil disturbance is less than 1-acre or more. The Project will employ effective erosion and sediment control practices during construction, as set forth in NYSDOT's statewide stormwater and erosion and sedimentation control specifications, standard construction details, and design and construction guidance procedures, which conform with the NYSDEC Stormwater Management Design Manual. The Project will have no potentially significant adverse impacts to stormwater.

Wetlands

No mapped Federal- or State-regulated wetlands are located within the physical work areas of the Project area. Additionally, no State or federal wetlands were identified in the Project area. Use of temporary soil erosion control measures will prevent any potential for stormwater runoff into off site wetlands.

Based on field verification no wetlands were observed in the Project Area in accordance with the 1987 US Army Corps of Engineers Wetland Delineation Manual and the Regional Supplement to the USACE Wetland Delineation Manual: Northcentral and Northeast Region.

Aesthetic Resources

PTI is proposing the construction of a wireless telecommunications facility within a proposed 50' x 50' fenced compound adjacent to Exit 37 of I-90 Eastbound, located in the Liverpool community within the Town of Salina, NY. Proposed improvements include the installation of one 180-foot-tall monopole (plus a 4-foot lightning rod) monopole, a 12-foot-wide temporary driveway, a 12-foot-wide permanent driveway, and all associated equipment (Project). PTI is proposing to use the existing utilities on the Site. The fenced compound will be significantly blocked from view by the remaining tree line during leaf-on conditions and is located within an area that is utilized for interstate travel. The Project will not result in any potentially significant adverse impacts to aesthetic resources.
